

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

202100554571CUOR: De Medeiros vs. Bag Fund LLC
09/23/2026 in Department 43
Motion for Attorney Fees/Costs in the Amount of \$134,542.50

The morning calendar in courtroom 43 will normally begin at 8:45. Please arrive for your hearing no later than 8:30 a.m. The door will be opened before the calendar is called.

The Court allows remote appearances by Zoom. Refer to the Courtroom 43 webpage for more information about remote appearances. For Zoom appearances, all counsel appearing by Zoom must register no later than 3:00 p.m. the court day before the hearing. If appearing by Zoom, log into the hearing no later than 8:30 a.m. The Court will transfer you to the meeting room when the calendar begins. Additional instructions can be found on the Court website. When you log in to Zoom, be sure that your name and the case name are used as your Zoom name.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling you can fax notice to Judge Coats's secretary, Ms. Brantner at 805-477-8790, stating that you submit on the tentative. Or you may email Courtroom43@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending a fax or email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motion: Plaintiffs' Motion for Attorney Fees

Tentative Ruling: Plaintiffs' motion for Attorney Fees is GRANTED in a reduced amount. Plaintiffs are awarded fees in the amount of \$27,750.00, as explained below.

Moving party is ordered to serve notice of the Court's ruling.

DISCUSSION

A. Plaintiffs Have Established Entitlement to Fees

The judgment awarded Plaintiffs \$100 in statutory penalties on the FDCPA/Rosenthal Act cause of action and expressly provided for **"attorneys' fees solely related to prosecution of this claim"** pursuant to Civil Code section 1788.30(c).

B. The Common-Issue Doctrine Does Not Justify Awarding the Entire Litigation Bill

In their motion, Plaintiffs identify overlapping issues: the determination that Bag Fund lacked an enforceable interest in the property was relevant both to quiet title and to the conclusion that its threats of a sheriff's sale were unlawful. The judgment found no enforceable lien or interest and that the collection letters violated the FDCPA and Rosenthal Act because no enforceable interest existed.

However, the existence of a common factual or legal issue does not necessarily establish that the time spent litigating the non-fee-bearing quiet-title and cross-complaint issues is compensable. Plaintiffs' authorities establish that fees need not be mechanically apportioned where work addresses an issue common to fee-bearing and non-fee-bearing claims.

Here, the record indicates that the case involved substantial litigation concerning issues independent of the debt-collection claims. The opposition correctly argues the quiet-title litigation involved title to the property, the recorded instruments, the nature of Bag Fund's property interest, and the fraudulent-transfer cross-complaint, while the debt-collection claims concerned the collection letters and whether Bag Fund's threatened enforcement action was legally permissible.

C. The Billing Invoices Define the Award

The opposition includes a review of counsel's invoices and identified \$6,915.50 in entries it contends are solely attributable to the debt-collection claims. Plaintiffs have not disputed the identification of those entries in their reply; instead, they contend that the Court should also compensate for the broader litigation work based on the common issues.

The opposition contends specific portions of the trial involved the debt-collection claims: testimony by Claudio De Medeiros concerning collection activity and six letters; brief testimony by Margaret De Medeiros concerning one letter; and the brief testimony of William Winfield. Bag Fund characterizes the debt-collection evidence as occupying only a small portion of the three-day trial and proposes \$2,500 for that work.

The Court has reviewed the invoices and concludes there is an evidentiary basis for awarding \$19,500 in pretrial attorneys' fees (based on the entries noted by Defendant and others the Court believes have sufficient reasonable commonality to justify an award), plus an additional reasonable amount for compensable trial time as specified below.

D. Disposition

Plaintiffs are entitled to recover reasonable attorneys' fees pursuant to Civil Code section 1788.30(c). The June 3, 2026, Judgment expressly limited that recovery to attorneys' fees "solely related to prosecution" of the FDCPA/Rosenthal Act claim.

The Court declines Plaintiffs' request for \$134,542.50. Although the debt-collection claims and the quiet-title claim involved some overlapping factual and legal issues, Plaintiffs have not established that the entirety of the requested litigation fees was incurred on issues compensable under the Judgment. The record reflects substantial work devoted to the quiet-title claim and Bag Fund's cross-complaint, neither of which independently supports an award under Civil Code section 1788.30(c).

The Court declines to limit the award to only those billing entries that can be characterized as exclusively concerning the debt-collection claims. The Court acknowledges that the judgment provided for “attorneys' fees solely related to prosecution of this claim,” but reasonable time spent on issues genuinely common to the compensable claims, including reasonable trial preparation and trial presentation concerning the collection conduct and the legal basis for Bag Fund's threatened sheriff's sale, may and should be recovered.

The Court finds \$19,500 in pretrial attorneys' fees can reasonably and fairly be attributable and apportioned to the compensable claims. The Court further finds \$3,500 to be a reasonable amount for the compensable trial work. The Court awards an additional \$4,750 for preparation of the motion, for preparation of the reply brief and for appearance at the hearing for a total award of \$27,750 in attorneys' fees.